

FORMAL COMPLAINT: DENIAL OF EDUCATIONAL ACCESS AND REQUEST FOR REIMBURSEMENT

TO: Minnesota Department of Education (MDE)
Division of Assistance and Compliance

Minneapolis, MN 55413

Email: [REDACTED]

COMPLAINANT: [REDACTED] (Minor Student)

RESPONDENT: Prior Lake-Savage Area Schools (ISD 719)

RESPONSIBLE AUTHORITY: Michael Thomas, Superintendent

I. INTRODUCTION

This is a formal state complaint filed with the Minnesota Department of Education (MDE) regarding the denial of educational access and the constructive exclusion of a minor student, [REDACTED]. The Complainant seeks an official investigation and equitable reimbursement for expenses incurred due to the District's failure to provide a safe, accessible learning environment following a violent physical assault.

II. STATEMENT OF FACTS AND JURISDICTION

On October 29, 2024, the student was the victim of a felony-level assault within a classroom at Hidden Oaks Middle School, where she was struck repeatedly with a chair. In the months following the assault, the District, under the direction of Superintendent Michael Thomas as the designated Responsible Authority, failed to enforce its own Weapons Policy (Policy 506) and refused to implement necessary safety accommodations.

As documented in Exhibit 4, the District's legal counsel issued a final administrative stance conditioning the discussion of safety protocols on the student first returning to the unregulated environment where the assault occurred. This "Catch-22" requirement effectively barred the student from attending school, resulting in a constructive exclusion and a total deprivation of educational services.

III. BUSTING THE 10-DAY NOTICE RULE: THE SAFETY EXCEPTION

The Complainant is seeking \$5,000 in reimbursement for a unilateral private school placement. While school districts often cite the 10-day notice requirement to avoid reimbursement, this complaint asserts the **Safety Exception** applies. Under Minnesota and federal educational

standards, the notice requirement is waived if compliance would likely result in physical or serious emotional harm to the child.

- **Actual Notice of Risk:** On November 5, 2024, the parent explicitly notified the HOMS Attendance office that the student was being kept home due to "concerns for her health, wellbeing, and safety."
- **Imminent Risk:** Because the District refused to provide a safety plan or investigate the presence of weapons in the classroom, forcing the child to remain in that environment for a 10-day waiting period would have subjected her to further physical and emotional trauma.

IV. VIOLATIONS AND RELIEF SOUGHT

The District's actions constitute a failure to provide a Free Appropriate Public Education (FAPE) and a violation of state safety mandates. The Complainant respectfully requests that the MDE issue an order for the following:

1. **Equitable Reimbursement:** Payment of \$5,000 for the unilateral private education placement necessitated by the District's constructive exclusion.
2. **Transportation Costs:** Reimbursement for all mileage and transportation expenses incurred for the student's out-of-district school runs, calculated at the standard IRS rate.
3. **Correction of Records:** A mandate for the District to correct misleading documentation and append the Complainant's Statement of Disagreement to all records related to this incident.

Respectfully Submitted,

[Redacted Signature]

[Redacted Address]

Itemized Redaction List

Bates/Page	Line	Redaction reason
[REDACTED]	6	Redacted to protect personal privacy.
[REDACTED]	8	Redacted to protect personal privacy.
[REDACTED]	9	Redacted to protect personal privacy.
[REDACTED]	15	Redacted to protect personal privacy.
[REDACTED]	22	Redacted to protect personal privacy.
[REDACTED]	23	Redacted to protect personal privacy.

Supplemental Itemized Redaction List

Page	Line	Redaction reason
1	12	Redacted to protect personal privacy.

Supplemental Itemized Redaction List

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No supplemental redactions were applied.

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No supplemental redactions were applied.

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3	5	Redacted to protect personal privacy.
3	6	Redacted to protect personal privacy.
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